> "With the guidance and inspiration of Prime Minister Narendra Modi, and the blessings of the 'divine people' of the state, our resolution of the Uniform Civil Code has been able to reach its fruition."
>
> — ***Pushkar Singh Dhami,*** *Chief Minister, Uttarakhand*

R UNITY



THE SCOPE OF UCC

- The UCC law extends to all Indian citizens who have been permanent residents of Uttarakhand for the last 15 years. Even those individuals who have domicile of Uttarakhand are covered under the UCC, irrespective of whether their temporary residence is inside the state, or outside the state. Any beneficiary of any state or Central government scheme applicable in the state is also covered under the UCC, regardless of their current residence status.
- Property ownership is not a criteria for applicability of the UCC. So, a resident of another state or having domicile of another state will not be covered under the UCC even if he or she has a property in Uttarakhand.
- The UCC covers permanent employees of the state government or its undertakings; permanent employees of the Central government or its undertakings employed in the state.
- The UCC will be applicable if an individual dies without making a will (intestate succession). If there is a will, then the UCC laws on inheritance will not apply.
- The UCC repeals every law, practice, custom or usage in Uttarakhand that are inconsistent with any provisions contained in the code.

HEADLINE: HOW UCC BUILDS AN EQUAL SOCIETY

- The Code applies to all residents of the state.
- It does not apply to members of the Scheduled Tribes and does not disturb customary practices pertaining to family law that are protected under the Constitution.
- Men and women have been accorded similar rights with respect to marriage, divorce, and inheritance.
- Marriages must be compulsorily registered within 60 days from the date of the marriage. It applies to marriages solemnised within Uttarakhand or outside its territory, provided, at least, one party to the marriage is a resident of the state.
- Although non-registration of marriage will not invalidate it, parties can attract a penalty of up to Rs 10,000. A three-month jail term and fine of Rs 25,000 will be also awarded in case false information is intentionally submitted during marriage registration.
- Marriage ceremonies can be conducted in accordance with prevailing religious beliefs, customary rites, and practices envisaged under legislations such as the Anand Marriage Act 1909, the Special Marriage Act 1954, and the Arya Marriage Validation Act 1937.
- No marriage can be dissolved without a court order. Violation of this can attract imprisonment up to three years.
- Bigamy or marriages with more than one person is prohibited.
- Grounds for divorce include adultery, cruelty, desertion, conversion to another religion, mental disorder, incurable venereal disease, renunciation of the world, absence for seven years, bigamy, and failure to comply with maintenance orders.
- Sons and daughters will have equal rights to inherit property. Adopted children, and children born through surrogacy or through assisted reproductive technology are also considered to be at par with biological children.
- Children born in void and voidable marriages and in live-in relationships will be considered legitimate and receive legal inheritance rights.